25LBCV00208 25LBCV00208

County: los-angeles

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Case Number: 25LBCV00208 Hearing Date: August 19, 2026 Dept: S28

BACKGROUND

On
January 29, 2025, Plaintiff commenced this lemon law action against Defendant.

On
July 9, 2025, Plaintiff filed the operative First-Amended Complaint ("FAC").

On
May 1, 2026, Defendant filed the instant Motion for Summary Judgment, or in the alternative, Summary Adjudication.

On
July 23, 2026, at the initial hearing on this Motion, the Court continued the motion to August 12, 2026 and stated that the briefing schedule was not to extended to the new hearing date.

On August 3, 2026, Plaintiff filed an untimely opposition.

On August 5, 2026, the Court noted that "though the Motion for Summary Judgment has been continued to August 12, 2026, Defense counsel requests a brief continuance of the hearing." The Court continued the Motion to August 19, 2026. The Court acknowledged Plaintiff's untimely opposition and noted that "Reply is to be filed by August 17, 2026."

On August 17, 2026, Defendant filed a reply.

DISCUSSION

Applicable Law

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party." (Aguilar, supra, at pp. 844-845 [quotation marks omitted].)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) "A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc. § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Preliminary Matters

A. Hearing Motion Within Thirty (30) Days of Trial

“The motion [for summary judgment] shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise.” (CCP § 437c(a); see Beroiz v. Wahl (2000) 84 Cal.App.4th 485, 493, fn. 4 [time limit not jurisdictional because court has power to permit later hearing].)

Here, the instant motion is being heard on August 19, 2026, which is within 30 days of trial set for August 24, 2026. The Court finds that there is good cause to hear the Motion within the 30 days of trial as the Court made a disclosure that necessitated a continuance of the hearing so that Plaintiff could file a statement of disqualification. In order to manage the Court’s calendar, this matter is now properly heard within 30 days of trial.

B. Untimely Opposition

Timely opposition to a motion for summary judgment must have been filed twenty (20) court days before the hearing. (Code Civ. Proc. § 473c subd. (c) [“An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise. The opposition, where appropriate, shall consist of affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken.”].)

Here,

Plaintiffs’ opposition was due July 3, 2026, twenty days prior to the original hearing date of July 23, 2026. Since the Court was dark on July 3rd in observance of Independence Day on July 4th, Plaintiffs’ Opposition was due no later than July 2, 2026. Plaintiffs’ opposition was not filed until August 3, 2026. Plaintiffs give no justification for filing opposition over thirty days late. The Court will not consider this untimely opposition, as to do so would put an undue burden on the Court and undercut the purpose of the Summary Judgment Statute’s strict procedural requirements.

C.

Defendant’s

Notice of Motion

Defendant

does not seek summary adjudication of the first and third causes of action as they are not identified in the notice of motion. The Court will not consider bases for summary adjudication that Defendant did not clearly articulate in the notice of motion and separate statement. On a dispositive motion on the merits, such as this motion for summary judgment, justice and due process require that the Court strictly construe the notice of motion. Where only certain claims or defenses are raised, the court has no power to adjudicate others. (Maryland Cas. Co. v. Reeder (1990) 221 Cal.App.3d 961, 974,)

However,

Defendant expressly noticed a motion for summary judgment on the entire FAC as well: "AHM will, and hereby does, move for summary judgment on Plaintiffs' First Amended Complaint ('FAC') pursuant to California Code of Civil Procedure section 437c." (AHM’s Notice, p. 2.) The Court thus may grant summary judgment as to the entire FAC, which includes the first and third causes of action, if Defendant carries its burden as to the entire FAC.

Analysis

D. Plaintiff’s Song-Beverly Act Claims

(First through Fourth causes of action)

i.

First Cause of Action – Express Warranty, Civil

Code Section 1793.2 (d)

Defendant argues that Plaintiffs cannot establish a triable issue of material fact for their First Cause of Action based on express warranty because Plaintiffs never presented their 2021 Honda Odyssey (“Subject Vehicle”) for more than one unsuccessful attempt to repair the same nonconformity. (Mot., p. 9.)

Plaintiffs’ first four causes of action arise under the Song-Beverly Act. “The Song–Beverly Act is a remedial statute designed to protect consumers who have purchased products covered by an express warranty.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798.) The Song-Beverly Act requires that “[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: [¶] (1)(A) Maintain in this state sufficient service and repair facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of those warranties or designate and authorize in this state as service and repair facilities independent repair or service facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranties.” (Civ. Code, § 1793.2(a).)

For motor vehicles specifically, “[i]f the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B).” (Civ. Code, § 1793.2(d)(2).)

“For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (Rodriguez v. Ford Motor Co.(2017), 17 Cal.5th 182, 202.) For purposes of Civil Code section 1793.2(d), the term “‘[n]ew motor vehicle’ means a new motor vehicle that is bought or used primarily for personal, family, or household purposes. ‘New motor vehicle’ also means a new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person, including a partnership, limited liability company, corporation, association, or any other legal entity, to which not more than five motor vehicles are registered in this state." (Civ. Code, § 1793.22(e)(2).) "[O]ther motor vehicle sold with a manufacturer's new car warranty" means "a vehicle for which a manufacturer's new car warranty is issued with the sale." (Rodriguez, supra, at p. 206.) Under Song-Beverly, a manufacturer is "generally off the hook" for used vehicles. (Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 339.)

Defendant cites to Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208 (Silvio), wherein the Court of Appeal expressly held that Song-Beverly Act liability is triggered when more than one repair attempt is made for the same alleged non-conformity. (Mot., p. 8.)

Defendant puts forth the following undisputed material facts: Plaintiffs presented the Subject Vehicle for thirteen (13) visits, seven (7) of which were solely for routine maintenance, three (3) visits were for separate and distinct recall related work, and three (3) visits were for incidental repairs, i.e., battery replacement, dings, rubbing noise from a skid plate and wheel repair. (SUMF Nos. 14-20.) The recall related presentations and repair – MOST FAKRA service cables recall, a door mirror glass safety recall, idle stop restart software update, and a weight sensor safety recall were presented on one occasion, repaired, and never presented again for repeat concerns, repairs, or updates. (SUMF Nos. 14-20, 21.) None of the incidental repairs were presented again for additional diagnosis or repair outside of the singular presentation. (SUMF No. 21.) The Subject Vehicle was never presented by Plaintiffs to an authorized dealership for any sensor related concern, nor was it ever diagnosed or confirmed to have a defect, and none of the presentations resulted in repairs for a recurring or unresolved defect, including any sensor related condition. (SUMF Nos. 22.) Critically, throughout Plaintiffs' Lease, the only sensor-related service was performed on the Subject Vehicle was conducted pursuant to a manufacturer recall. (SUMF No. 23.) The Subject Vehicle's history is clear, at no time did any authorized repair facility diagnose or confirm a sensor related defect or repeated concern in the Subject Vehicle. (SUMF Nos. 24-25.) Moreover, the service history shows that the Subject Vehicle was not presented to an authorized dealership more than once for the same reported concerns. (SUMF Nos. 25.)

Here, based on the repair records before the Court, Defendant carries its burden to establish that Plaintiffs did not present the Subject Vehicle for more than one repair attempt for the same alleged non-conformity during the express warranty period.

Plaintiffs fail to timely oppose, and thus fail to create a triable issue of material fact on the first cause of action.

ii.
Second
Cause of Action -- Section 1793.2(b) Claim

Section 1793.2(b) of the Song-Beverly Act requires defendants to repair a vehicle to conform to the applicable warranty within thirty days.

Defendant argues that Plaintiffs' 1793.2(b) claim fails as Plaintiffs lack affirmative evidence that the vehicle was ever out of service for repairs for more than 30 days. (Mot., p. 8.) Defendant puts forth the following undisputed material facts: the Subject Vehicle was presented for service on a limited number of occasions between 2021 and 2026, primarily for recall related work, incidental repairs, and routine maintenance. Each repair visit was completed promptly—within one to seven days—and no repair visit exceeded thirty (30) days. (SUMF Nos. 12, 14-20, 28.) There is no evidence of any delay in commencing repairs or any instance where the Subject Vehicle remained out of service for an unreasonable period. (SUMF Nos. 14-20, 28.) Moreover, the repair history of the Subject Vehicle reflects that recall-related work was completed once and not repeatedly, and the vehicle was consistently returned to Plaintiffs in operable condition. (SUMF Nos. 14-20.) Plaintiffs continued to use the Subject Vehicle for years, ultimately accumulating almost 60,000 miles as of April 2026, further confirming that the Subject Vehicle was not subject to prolonged or repeated repair attempts. (SUMF No. 14-21.)

Here, Defendant carries its burden to establish that Plaintiffs have not produced and cannot produce affirmative evidence that any single repair attempt exceeded 30 days as required under § 1793.2(b).

Plaintiffs fail to timely oppose, and thus fail to create a triable issue of material fact on the second cause of action.

iii.
Third
Cause of Action -- 1793.2(a)(3) Claim

Defendant makes no argument as to the third cause of action, mentioning it only in a single sentence in the separate statement: “All facts are material to Plaintiffs’ Song Beverly Claims (First-Third Causes of Action).” Thus, Defendant fails to carry its burden on this cause of action.

iv.
Fourth
Cause of Action -- Implied Warranty

Section 1791.1(c) of the Song-Beverly Consumer Warranty reads: “The duration of the implied warranty of merchantability…shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above.” (Cal. Civ. Code §1791.1(c),

Defendant first argues that Plaintiffs’ implied warranty claim fails because there is no privity of contract between Plaintiffs and AHM as Plaintiff Rosas leased the Subject Vehicle from a third-party dealership, not directly from AHM. (SUMF Nos. 2, 4-8.) (Mot., p. 11.) Defendant asserts that Plaintiffs have no evidence, nor can they obtain any evidence that AHM was a party to the Lease for the Subject Vehicle and had any involvement in negotiating or completing the transaction. (SUMF Nos. 2, 4.)

Defendant next argues that Plaintiffs cannot identify any evidence suggesting that the Subject Vehicle was unsafe or undrivable. (Mot., p. 11.) Defendant puts forth the following undisputed facts: Plaintiff Rosas leased the Subject Vehicle on February 9, 2021, more than four years prior to filing the FAC. (SUMF Nos. 1-2.) Over the course of the Lease (and thereafter), Plaintiffs have continually presented the Subject Vehicle for routine maintenance, incidental repairs, and recall related work. (SUMF Nos. 14- 20.). Further, the undisputed repair history shows that the isolated concerns that Plaintiffs presented the Subject Vehicle for related to the battery, minor cosmetic damage or “dings,” wheel repair, and a rubbing issue due to a loose skid plate, none of which demonstrate a defect in the Subject Vehicle rendering it unfit for ordinary use or substantially impairing the use, value, or safety of the vehicle. (SUMF Nos. 14-20.) The absence of repeat complaints confirms that all issues, including incidental concerns, were resolved when Plaintiffs permitted repairs and did not impair the Subject Vehicle’s ability to function as ordinary transportation. (SUMF No. 21.) Notably, Plaintiffs’ verified discovery responses, including their document production, and the undisputed repair history establish that after the Lease expired, Plaintiff Barajas entered into a financing agreement for the Subject Vehicle and Plaintiffs continued to possess and present it for service. (SUMF Nos. 3, 18–20).

Here, Defendant carries its burden to establish that Plaintiffs failed to put forth evidence that their vehicle was not fit for the ordinary purpose for which it was used, or that it was unsafe to operate.

Plaintiffs fail to timely oppose, and thus fail to create a triable issue of material fact on the fourth cause of action.

Overall, Defendant's motion for summary adjudication is GRANTED as to the second and fourth causes of action. Defendant did not seek summary adjudication of the first and third causes of action in the notice of motion and since Defendant failed to carry its burden on the entire FAC, namely the third cause of action, the Court cannot grant relief on the first and third causes of action through summary judgment of the entire FAC.

E.
Fraudulent Concealment (Fifth cause of action)

Defendant next argues that Plaintiffs’ fraudulent concealment claim fails as a matter of law because (1) this cause of action is barred by the economic loss doctrine; (2) Plaintiff has no evidence of concealment; and (3) AHM had no duty to disclose additional information to Plaintiffs. (Mot., pp. 12-20.)

Fraud based on concealment requires that “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).)

An essential element of intentional concealment includes the duty to disclose, which must be based upon a transaction, or a special relationship, between plaintiff and defendant. (Bigler-Engler, supra, 7 Cal.App.5th at 311.) “There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’” (Ibid.) “[O]ther than the first instance, in which there must be a fiduciary relationship between the parties, ‘the other three circumstances in which nondisclosure may be actionable presuppose[ ] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. . . . “[W]here material facts are known to one party and not to the other, failure to disclose them is not actionable fraud unless there is some relationship between the parties which gives rise to a duty to disclose such known facts.” [Citation.]’ [Citation.]” (Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1187 (Hoffman).) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at p. 312.)

First,
Defendant argues that the fraudulent concealment claim fails because it is barred by the economic loss rule. (Mot., p. 13.) The economic loss doctrine precludes recovery in tort where a plaintiff's damages consist solely of economic losses. (Seely v. White Motor Co. (1965) 63 Cal.2d 9, 17-18, superseded by statute on other grounds.)

Here,
Defendant has not established that Plaintiffs' fraud claim is barred by the economic loss rule. "[T]he economic loss rule does not apply to limit recovery for intentional tort claims like fraud," but applies instead to negligently inflicted economic losses devoid of physical or property damage. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 38.) "Plaintiffs' claim for fraudulent inducement by concealment is not subject to demurrer on the ground it is barred by the economic loss rule." (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 840 (review dismissed December 18, 2024.) This cause of action is an intentional tort fraud claim and therefore falls outside the scope of the economic loss rule. (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1211.)

Thus, Defendant fails to carry its burden on this issue.

Second,
Defendant argues that Plaintiffs have put forth no evidence that AHM possessed knowledge of the alleged "Sensing Defect" prior to the sale of the Subject Vehicle and intentionally concealed it for the purpose of defrauding Plaintiffs. (Mot., p. 16.) Defendant puts forth the following undisputed facts in support: Plaintiffs' discovery responses are factually devoid as they identify no representations, communications, documents or witnesses showing that AHM knew of or concealed any defect before sale. (SUMF No 34.) In fact, Plaintiffs failed to identify any specific information at all. (SUMF Nos. 34-35.) There is no evidence, and Plaintiffs cannot obtain any evidence, that the Subject Vehicle suffered from a "Sensing Defect." (SUMF Nos. 22-25.) The undisputed evidence, including all the repair orders for the Subject Vehicle, shows that Plaintiffs never presented the Subject Vehicle for a sensing-related complaint. (Ibid.) Accordingly, Plaintiffs cannot establish AHM was aware of any "Sensing Defect" present in the Subject Vehicle prior to Plaintiffs' Lease and that AHM intentionally concealed this knowledge

from Plaintiffs. (SUMF Nos. 12, 14-25, 32.)

Here, Defendant carries its burden to establish that Plaintiffs failed to put forth evidence that Defendant concealed any material fact. Plaintiffs put forth no basis for AHM's pre-sale knowledge of any defect, and the service history does not involve any sensing defects which Plaintiffs claim Defendant concealed in the first place.

Plaintiffs fail to oppose, and thus fail to create a triable issue of material fact on the fifth cause of action on this basis.

Finally, Defendant argues that Plaintiffs cannot establish that AHM owed a duty to disclose to them, much less a direct transactional relationship between Plaintiffs and AHM. (Mot., p. 18.) Defendant contends that Plaintiffs did not engage in a direct transaction with AHM because Plaintiffs leased the Subject Vehicle from independently owned and operated dealerships, Hansel Honda and Manly Honda. (SUMF Nos. 5, 12; Ex. 1 to the IOE.)

Here, Defendant carries its burden to establish that there was no relationship between the parties that gave rise to a duty to disclose facts as Defendant is the manufacturer while Plaintiffs only entered into a contract with a third-party retailer. (See Hoffman, supra, 228 Cal.App.4th at 1187.)

Thus, in the absence of a fiduciary relationship, Plaintiffs' claim for concealment requires one of three conditions: (1) exclusive knowledge of a material fact by Defendant; (2) active concealment of a material fact; or (3) partial representations coupled with suppression of material facts. (Bigler-Engler, supra, 7 Cal.App.5th at 311; LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.)

As discussed above, Defendant carries its burden to establish that Plaintiffs presented with no sensing defect and that Plaintiffs fail to provide evidence that Defendant concealed any defect.

Plaintiffs fail to oppose, and thus fail to create a triable issue of material fact on the fifth cause of action on this basis.

Overall,
Defendant's motion for summary adjudication is GRANTED as to the fifth cause of action.

F. Punitive
Damages

Section 3294 of the Civil Code
permits punitive damages only upon “clear and convincing” evidence that the defendant acted with malice, oppression or fraud, and—when the defendant is a corporation— only where such conduct is authorized or ratified by an officer, director, or managing agent. (Civ. Code, § 3294(a), (b).)

Defendant argues that Plaintiffs
cannot establish a triable issue of material fact that AHM defrauded them by clear and convincing evidence as necessary for a punitive damages claim. (SUMF No. 35.)

Here, the Court agrees, but this
argument is moot. The Fifth Cause of Action for Fraud giving rise to punitive damages fails and the prayer for punitive damages thus fails as a matter of law.

CONCLUSION

Defendant’s Motion for Summary Adjudication
is GRANTED as to the second, fourth, and fifth causes of action. Defendant did not seek summary adjudication of the first and third causes of action in the notice of motion and since Defendant failed to carry its burden on the entire FAC, namely the third cause of action, the Court cannot grant relief on the first and third causes of action through summary judgment of the entire FAC.